

**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH**

IN RE:
RUTH A. KIBBY
License No. 068.0000223

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Docket No.: 2012-358

STIPULATION AND CONSENT ORDER

NOW COMES the State of Vermont, by and through State Prosecuting Attorney S. Lauren Hibbert, and the Respondent, Ruth A. Kibby, who stipulate and agree as follows:

Board Authority

1. The Vermont Board of Allied Mental Health has jurisdiction to hear the charges in this case, adjudicate cases of unlicensed practice, and/or impose an administrative penalty pursuant to 3 V.S.A. §§127, 129, 129a; 26 V.S.A. § 4083; the Rules of the Board of Allied Mental Health Practitioners and the Rules of the Office of Professional Regulation.

Statement of Facts

2. Ruth A. Kibby ("Respondent") of Putney, Vermont is registered in the State of Vermont as a Licensed Clinical Mental Health Counselor under license number 068.0000223. This registration was originally issued on December 29, 1994 and expired on January 31, 2013.
3. At all relevant times, Respondent was employed by Correct Care Solutions, Inc. of Nashville, Tennessee as a Mental Health Counselor and worked at the Southern State Correctional Facility (the "Facility") in Springfield, Vermont.
4. While working at the Facility, Respondent began having a romantic relationship with M.B., an inmate at the facility.
5. Respondent and M.B. exchanged numerous pieces of written communication. Included in communication written by Respondent were the following statements:
 - a. "You are my baby love! My dream angel, so keep up the hard work, I will put me on your call + visit list + I will be there soon!"
 - b. "I don't think they will stop us from talking + seeing each other – so go for it love"

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- c. "So, my plan, some of it, for when I pick you up. I want to take you immediately to a pull off on a dirt road + make love with you. I want to feed you popcorn chicken at 8 in the morning + drink beer – your favorite. I want to touch you all over. I want to smell you and definitely bit you."
6. On or about January 10, 2013, in an interview with Investigator Dennis Menard of the Office of Professional Regulation, Respondent admitted to having a romantic relationship with M.B. Respondent stated that, since being terminated from her employment at the Facility, she has continued to correspond with him.
7. During the January 10, 2013 interview, Respondent stated that one of her duties at the Facility was to evaluate inmates to see if they needed medications for disorders such as depression. Respondent admitted that she had provided such a diagnosis for M.B.

Violations

8. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because the Respondent has committed unprofessional conduct in violation of:
- a. 3 V.S.A. § 129a(b)(2) (Failure to practice competently by reason of any cause on a single occasion or on multiple occasions may constitute unprofessional conduct, whether actual injury to a client, patient, or customer has occurred. Failure to practice competently includes: (2) failure to conform to the essential standards of acceptable and prevailing practice);
 - b. 26 V.S.A. § 3271(a)(3) (Conduct which evidences unfitness to practice clinical mental health counseling);
 - c. 26 V.S.A. § 3271(a)(4) (Engaging in any sexual conduct with a client, or with the immediate family member of a client, with whom the licensee has had a professional relationship within the previous five years); and
 - d. 26 V.S.A. § 3271(a)(6) (Entering into an additional relationship with a client, supervisee, research participant or student that might impair the licensed clinical mental health counselor's objectivity or otherwise interfere with the clinical mental health counselor's professional obligations).

Understandings

9. Respondent admits the facts as outlined above are true and the Board may find that the Respondent engaged in unprofessional conduct.

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10. Respondent understands that the Board must review and accept the terms of the Consent Order. If the Board rejects any portion, the entire Stipulation and Consent Order shall be null and void.
11. Respondent specifically waives any claims that any disclosures made to the full Board during its review of this agreement have prejudiced her rights to a fair and impartial hearing in future hearings if this agreement is not accepted by the Board.
12. Respondent has read and reviewed this entire document and agrees that it contains the entire agreement between the parties.
13. Respondent is not under the influence of any drugs or alcohol at the time she signs this Stipulation and Consent Order.
14. Respondent voluntarily enters into this agreement after the opportunity to consult with legal counsel and is not being coerced by anyone into signing this Stipulation and Consent Order.
15. Respondent voluntarily waives her right to a contested hearing before the Board and waives any right to appeal from this Stipulation and Consent Order.
16. Respondent agrees that the Order set forth below may be entered by the Board.

ORDER

Based on the Stipulation above, it is **ORDERED AND ADJUDGED** as follows:

- A. The Board of Allied Mental Health hereby **INDEFINITELY SUSPENDS** Respondent's license to practice **from the date of entry below**. If Respondent seeks reinstatement the Board may impose conditions on her license that are appropriate at that time.
- B. This Stipulation and Consent Order is a matter of public record and may be reported to other licensing authorities as provided in 3 V.S.A. §129(a).
- C. This Stipulation and Consent Order will remain part of Respondent's licensing file and may be used for purposes of determining sanctions in any future disciplinary matter.

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AGREED TO:

Dated: 4/1/13

STATE OF VERMONT
SECRETARY OF STATE

By: S. Lauren Hibbert
S. Lauren Hibbert
State Prosecuting Attorney

RUTH A. KIBBY
RESPONDENT

Dated: 3.28.13

By: Ruth A. Kibby
Ruth A. Kibby

APPROVED AND SO ORDERED:

VERMONT BOARD OF NURSING
Allied Mental Health

Dated: 4/18/13

By: Marilyn Turcotte
Chairperson *LCMHC*

Date of Entry: 4/18/13

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